TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1455]

[1959593 et al.]

[DA's-118, 126, 128, 129—Arizona]

ARIZONA

POWER SITE CANCELLATION NO. 117, GILA RIVER; POWER SITE RESTORATION NO. 500, GILA AND SAN FRANCISCO RIVERS; PARTIALLY REVOKING THE DEPARTMENTAL ORDER OF FEBRUARY 1, 1917, WHICH WITHDREW LANDS IN WATER POWER DESIGNATION NO. 4; PARTIALLY REVOKING THE EXECUTIVE ORDERS OF MARCH 1, 1912, OCTOBER 23, 1924, AND NOVEMBER 22, 1924, WHICH CREATED POWER SITE RESERVES NOS. 242, 758, AND 759, RESPECTIVELY

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, and the act of June 20, 1910 (36 Stat. 557, 575), it is ordered as follows:

[70188]

[1959593]

1. The Executive orders of March 1, 1912, October 23, 1924, and November 22, 1924, creating Power Site Reserves Nos. 242, 758, and 759, respectively, and the departmental order of February 1, 1917, withdrawing lands in Water Power Designation No. 4, are hereby revoked so far as they affect the following-described lands:

GILA AND SALT RIVER MERIDIAN

T. 4 S., R. 15 E.,
Sec. 1, S½SE¼;
Sec. 12, N½NE¼.
T. 3, S., R. 16 E. (partly unsurveyed),
Sec. 36, N½S½.
T. 4 S., R. 16 E.,
Sec. 6, E½SE¼;
Sec. 7, lot 4, W½SE¼;
Sec. 10, N½NE¼;
Sec. 11, N½NW¼ and NE¼SE¼;
Sec. 14, E½SE¼;
Sec. 16, N½ NW¼;
Sec. 17, S½SE¼;
Sec. 20, W½NE¼;
Sec. 22, SW¼NW¼;
Sec. 23, NE¼NE¼, S½SW¼, and S½SE¼.
T. 3 S., R. 17 E.,
Sec. 13, S½S½;
Sec. 19, SE¼;
Sec. 20, S½;
Sec. 21, S½;
Sec. 22, S½SW¼ and SE¼;
Sec. 23, NE¼NE¼, S½N½, SW¼, N½SE¼, and SW¼SE¼;
Sec. 24, N½N½ and SW¼NW¼;
Sec. 25, SE¼NE¼, NE¼SW¼, S½SW¼, and SE¼;
Sec. 26, S½SE¼;
Sec. 27, N½NE¼, SW¼NE¼, N½NW¼, and SE¼NW¼;
Sec. 28, S½SW¼;
Sec. 29, NW¼NW¼ and S½SE¼;
Sec. 30, lots 3, 4, NE¼, SE¼NW¼, E½SW¼, and NW¼SE¼;
Sec. 31, lots 1, 2, and NE¼NW¼;
Sec. 32, NE¼, SE¼NW¼, and SW¼;
Sec. 33, W½NE¼, SE¼NE¼, NW¼, and SE¼;
Sec. 34, S½;
Sec. 35, NE¼, NE¼NW¼, S½NW¼, and SW¼;
Sec. 36, N½NW¼.
T. 4 S., R. 17 E.,
Sec. 5, lots 3, 4, S½NW¼, and W½SW¼;
Sec. 6, lot 1, SE¼NE¼, SE¼SW¼, and SE¼;
Sec. 7, lots 1, 2, NE¼, and E½NW¼.
T. 4 S., R. 22 E.,
Sec. 11, lots 3 and 4;
Sec. 12, S½NE¼, NW¼NW¼, and S½ NW¼.
T. 4 S., R. 29 E.,
Sec. 12, lots 1 to 10, incl., NE¼NE¼, S½ SW¼, and NW¼SE¼;
Sec. 13, SW¼NE¼, E½NW¼, NW¼NW¼, and S½SW¼;
Sec. 24, NW¼NE¼, S½NE¼, E½W½, and SE¼;
Sec. 25, lots 1, 3, 4, 5, 6, 7, N½NE¼, SE¼ SW¼, and S½SE¼.
T. 5 S., R. 29 E.,
Sec. 1, lots 2, 3, 4, 7, 8, 9, 12, 13, 14, 15, 16, and 17;
Sec. 10;
Sec. 11, W½NE¼, NW¼, N½SW¼;
Sec. 12, lots 3 and 4;
Sec. 13, lots 5 to 16, inclusive;
Sec. 14, E½SE¼;
Sec. 15, N½NE¼, NW¼, and N½SW¼;
Sec. 23, N½;
Sec. 24, NW¼.
T. 3 S., R. 30 E. (partly unsurveyed),
Sec. 1, lots 3, 4, S½NW¼, and NW¼SW¼;
Sec. 2;
Sec. 3, S½NE¼, E½SW¼, and SE¼;
Sec. 9, SW¼SW¼, E½SW¼, and NE¼ NE¼;
Sec. 10, E½NE¼, NW¼NW¼, and NE¼ SE¼;
Sec. 11, SE¼SE¼;
Sec. 12, S½NE¼, NE¼SW¼, and SE¼;
Sec. 13, N½NE¼, NW¼, and NW¼SW¼;
Sec. 14, NE¼NE¼, S½NE¼, and S½;
Sec. 15, E½SE¼;
Sec. 16, NW¼;
Sec. 17, NE¼, SE¼NW¼, SW¼, and SE¼;
Sec. 19, E½NE¼ and SE¼;
Sec. 20, E½NE¼, SW¼NE¼, W½W½, SE¼SW¼, and SE¼;
Sec. 21, S½NE¼ and S½;
Sec. 22, N½NE¼, S½N½, SW¼, N½SE¼, and SW¼SE¼;
Sec. 23, N½NW¼ and SW¼NW¼;
Sec. 27, W½NW¼;
Sec. 28;
Sec. 29;
Sec. 30, E½ and E½SW¼;
Sec. 31;
Sec. 32;
Sec. 33, W½NE¼ and W½.
T. 4 S., R. 30 E.,
Sec. 4, lots 1, 2, S½NW¼, and SW¼;
Sec. 6, lots 2, 3, 4, 5, SW¼NE¼, and SE¼ NW¼;
Sec. 7, SW¼SE¼ and E½SE¼;
Sec. 8, SW¼ and W½SE¼;
Sec. 17, W½;
Sec. 18, E½;
Sec. 19, E½SE¼;
Sec. 20, W½;
Sec. 29, W½ and W½SE¼;
Sec. 30, E½NE¼.
T. 5 S., R. 30 E.,
Sec. 5, lots 3, 4, S½NW¼, and SW¼;
Sec. 7, NE¼NE¼, S½NE¼, and SE¼;
Sec. 8, NW¼, N½SW¼, and SW¼SW¼;
Sec. 18, lot 2, SE¼NW¼, and NE¼.
T. 3 S., R. 31 E.,
Sec. 2, lots 2, 5, 6, E½SW¼, and SW¼ SE¼;
Sec. 3, lots 2, 3, SE¼NW¼, and NE¼SW¼;
Sec. 4, SW¼NW¼, SW¼, and E½SE¼;
Sec. 5, S½NW¼, and N½SE¼;
Sec. 6, SE¼NE¼, E½SW¼, and SE¼;
Sec. 7, NE¼ and NE¼NW¼;
Sec. 9, NE¼, E½NW¼, and S½;
Sec. 10, S½NE¼, NW¼, and SW¼SW¼;
Sec. 11, W½NW¼.
T. 6 S., R. 31 E.,
Sec. 5, SW¼;
Sec. 6, lots 1, 2, 3, 4, 5, SE¼NW¼, S½NE¼, E½SW¼, and SE¼;
Sec. 7, lot 5;
Sec. 8, NE¼, E½NW¼, NE¼SW¼, and SE¼;
Sec. 19, NE¼NW¼;
Sec. 20, S½NE¼, SE¼NW¼, NE¼SW¼, SE¼SE¼, and N½SE¼;
Sec. 28, W½W½ and SE¼SW¼;
Sec. 30, lots 5 and 7;
Sec. 31;
Sec. 33, W½ and W½SE¼.
T. 2 S., R. 32 E.,
(Unsurveyed) All lands within one mile of San Francisco River.

The areas described aggregate approximately 31,259 acres.

2. The following-described lands are within the Gila National Forest and have been open to applications and offers under the mineral-leasing laws. They also have been open to location under the mining laws pursuant to the provisions of the act of August 11, 1955 (69 Stat. 683; 30 U. S. C. 621). They will be open to such other applications, selections and locations, as are permitted on national forest lands effective at 10:00 a. m. on September 5, 1957.

GILA AND SALT RIVER MERIDIAN

T. 3 S., R. 30 E.,
Sec. 1, lots 3, 4, S½NW¼, and NW¼SW¼;
Sec. 2, lots 1, 3, S½N½, and SE¼;
Sec. 3, S½NE¼, E½SW¼, and SE¼;
Sec. 9, NE¼NE¼, NE¼SW¼, and S½ SW¼;
Sec. 10, E½NE¼, NW¼NW¼, and NE¼ SE¼;
Sec. 11, SE¼SE¼;
Sec. 12, S½NE¼, NE¼SW¼, and SE¼;
Sec. 13, N½NE¼, NW¼, and NW¼SW¼;
Sec. 14, E½NE¼, SW¼NE¼, and S½;
Sec. 15, E½SE¼;
Sec. 16, NW¼;
Sec. 21, S½NE¼ and S½;
Sec. 22, NE¼, S½NW¼, SW¼, N½SE¼, and SW¼SE¼;
Sec. 23, N½NW¼ and SW¼NW¼;
Sec. 27, W½NW¼;
Sec. 28;
Sec. 33, W½NE¼, SE¼NE¼, NW¼, and SE¼.
T. 3 S., R. 31 E.,
Sec. 2, lots 2, 5, E½SW¼, and SW¼SE¼;
Sec. 3, lots 2, 3, SE¼NW¼, and NE¼SW¼;
Sec. 4, SW¼NW¼, SW¼, and E½SE¼;
Sec. 5, S½NW¼ and N½SE¼;
Sec. 6, SE¼NE¼, E½SW¼, and SE¼;
Sec. 7, NE¼ and NE¼NW¼;
Sec. 9, NE¼, E½NW¼, and S½;
Sec. 10, S½NE¼, NW¼, and SW¼SW¼;
Sec. 11, W½NW¼.
T. 2 S., R. 32 E.,
(Unsurveyed) All lands within one mile of San Francisco River.

The areas described aggregate approximately 10,804.62 acres.

3. The following-described lands have been patented without a reservation of mineral to the United States:

GILA AND SALT RIVER MERIDIAN

T. 4 S., R. 15 E.,
Sec. 1, S½SE¼;
Sec. 12, N½NE¼.
T. 4 S., R. 16 E., (partly unsurveyed),
Sec. 7, lot 4 and W½SE¼;
Sec. 16, N½NW¼.
T. 4 S., R. 29 E.,
Sec. 12, lot 8, NE¼NE¼, and SE¼SW¼.
T. 6 S., R. 31 E.,
Sec. 8, S½SE¼;
Sec. 20, SE¼NW¼;
Sec. 28, W½W½ and SE¼SW¼;
Sec. 33, W½ and W½SE¼.

The areas described aggregate 1,204.39 acres.

4. The following-described lands have been patented with a reservation of minerals to the United States:

GILA AND SALT RIVERS MERIDIAN

T. 3 S., R. 30 E.,
Sec. 17, SE¼NW¼, N½SW¼, and SW¼SW¼;
Sec. 19, E½NE¼.

The areas described aggregate 240 acres.

5. The following-described lands are State school lands:

GILA AND SALT RIVER MERIDIAN

T. 3 S., R. 17 E.,
Sec. 32, NE¼, SE¼NW¼, and SW¼;
Sec. 36, N½NW¼.
T. 4 S., R. 30 E.,
Sec. 32, S½S½.
T. 3 S., R. 30 E.,
Sec. 2 lots 2, 4, and SW¼;
Sec. 32.
T. 3 S., R. 31 E.,
Sec. 2, lot 6.

The areas described aggregate 1,508.72 acres.

6. The remaining lands aggregating approximately 19,000 acres, are located in Greenlee, Gila, and Pinal Counties, Arizona. They lie in an area which is very rough and mountainous. Agricultural possibilities are almost impossible as the few small flat areas are subject to repeated flooding. Grazing and possibly some mining are the only indicated uses of the lands. The lands are included within Arizona Grazing District No. 4.

7. No application for the restored lands may be allowed under the homestead, desert land, small tract, or any other nonmineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

8. Subject to any valid existing rights and the requirements of applicable law, the public lands released from withdrawal by this order, are hereby opened to filing of applications, selections, and locations in accordance with the following; the unsurveyed lands being opened to such applications, selections, and locations as are allowable on unsurveyed lands.

(a) Applications and selections under the non-mineral public land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications for surveyed lands under the Homestead, Desert Land, and Small Tract Laws and for unsurveyed lands under the Small Tract Laws by qualified veterans of World War II or the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) as amended, presented prior to 10:00 a. m., on September 5, 1957, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m., on December 5, 1957, will be governed by the time of filing.

(3) All valid applications and selections under the non-mineral public-land laws, other than those coming under paragraphs 11 (a) (1) and 11 (a) (2) above, and applications and offers under the mineral-leasing laws presented prior to 10:00 a. m., on December 5, 1957, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

(b) The lands have been opened to applications and offers under the mineral-leasing laws. They also have been open to location under the U. S. mining laws pursuant to the provisions of the act of August 11, 1955 (69 Stat. 683; 30 U. S. C. 621).

9. Persons claiming veterans preference rights must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

10. The restored lands shall be subject until 10:00 a. m., on December 5, 1957, to application by the State of Arizona, under any statute or regulation applicable thereto, for rights-of-way for public highways or as a source of material for the construction and maintenance of such highways pursuant to section 24 of the Federal Power Act of June 10, 1920 (41 Stat. 1075; 16 U. S. C. 818) as amended.

11. The following-described lands are included in private exchange applications, Arizona 06041 and 08144, filed under section 8 of the act of June 28, 1934, as amended by section 3 of the act of June 26, 1936 (48 Stat. 1272; 49 Stat. 1976; 43 U. S. C. 315g) by which the offered lands will benefit a Federal land program. These lands are, therefore, not subject to the provisions contained in the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) as amended, granting preference rights to veterans of World War II, the Korean Conflict, and others:

GILA AND SALT RIVER MERIDIAN

T. 5 S., R. 29 E.,
Sec. 10;
Sec. 11, W½NE¼, NW¼, and NE¼SW¼;
Sec. 15, N½NE¼ and N½SW¼.

The areas described aggregate 1,080 acres.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Phoenix, Arizona.

JULY 31, 1957.

ROGER ERNST,
Assistant Secretary of the Interior.

[F. R. Doc. 57-6389; Filed, Aug. 5, 1957; 8:45 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

[7 CFR Part 909]

ALMONDS GROWN IN CALIFORNIA

PROPOSED RULE WITH RESPECT TO SALABLE AND SURPLUS PERCENTAGES FOR 1957–58 CROP YEAR

Notice is hereby given that the Secretary is considering a proposed rule to establish a salable percentage of 70 percent and a surplus percentage of 30 percent for California almonds during the 1957–58 crop year which began on July 1, 1957, and will end on June 30, 1958. The proposed rule, which is based upon the recommendation of the Almond Control Board and other information available to the Secretary, would be established in accordance with the applicable provisions of Marketing Agreement No. 119 and Order No. 9, as amended (7 CFR Part 909), regulating the handling of almonds grown in California. Said marketing agreement and order is effective under the provisions of the Agricultural Marketing Act of 1937, as amended (7 U. S. C. 601 et seq.).

Consideration will be given to data, views or arguments pertaining thereto which are filed with the Director, Fruit and Vegetable Division, Agricultural Marketing Service, United States Department of Agriculture, Washington 25, D. C., not later than the tenth day after publication of this notice in the FEDERAL REGISTER.

The proposed percentages are based on the following estimates (in terms of kernel weight) for the crop year beginning July 1, 1957: (1) A carryover by handlers on July 1, 1957, of 17.1 million pounds; (2) an estimated domestic pro-